

		refusing declaratory relief . . . ’ ”.) Thus, the demurrer to the eighth cause of action is OVERRULED. <u>Ninth Cause of Action for Unjust Enrichment</u> Cross-Defendant argues this claim should be dismissed because unjust enrichment is not a cause of action but a claim for restitution. There is a split of authority as to whether “unjust enrichment” is an independent cause of action. (<i>Levine v. Blue Shield of California</i> (2010) 189 Cal.App.4th 1117, 1138 [“Although some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation], this court has recently held that ‘[t]here is no cause of action in California for unjust enrichment.’ ”].) The Court will follow <i>Peterson v. Celco Partnership</i> (2008) 164 Cal.App.4th 1583, which recognized unjust enrichment as a separate claim. Thus, the demurrer to the ninth cause of action is OVERRULED. <u>Motion to Strike</u> Because the fraud-based causes of action are sufficiently pled, the claim for punitive damages is properly pled. Thus, the motion to strike is DENIED. Moving party to give notice.
106	O’Kane v. Radovich, 2022-01276312	MOTIONS TO BE RELIEVED AS COUNSEL - GRANTED FBT Gibbons LLP (“Moving Attorney”) moves to be relieved as counsel of record for (1) Defendant Dragica Radovich and (2) Defendant Chaslav Radovich. The motion is unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362.

		The court will interlineate Paragraph 7 of the orders with the next hearing date: 06/29/26 at 9:00 a.m. in Department N14 - Motions to Be Relieved as Counsel of Record. The court will interlineate Paragraph 8 of the orders with the following additional hearing: 08/24/26 at 9:00 a.m. in Department N14 – Motion for Continuance of Trial. The court will interlineate Paragraph 9 of the orders with the correct trial date: 08/10/2026 at 8:30 a.m. in Department N14. The motions are GRANTED and will be effective in the filing of proof of service of the court’s signed order on the clients. Moving Attorney to give notice.
107	Ramirez vs. Toyota Motor Sales U.S.A, Inc., 2024 01449865	MOTION FOR ATTORNEY FEES – GRANTED IN PART Plaintiffs Mario Bautista Ramirez and Adriana Ramirez Silma (“Plaintiffs”) move for attorney fees and costs in the total amount of \$23,424.50: \$14,101.50 in attorney fees, a lodestar multiplier of 1.5 in the amount of \$7,050.75, and \$2,272.25 in costs and expenses. Defendant Toyota Motor Sales U.S.A., Inc. (“Defendant”) contends the attorney fees requested should be reduced, and a lodestar multiplier should not be applied. Defendant does not seek to strike or tax any of the costs sought by Plaintiffs. The Song-Beverly Consumer Warranty Act provides remedies for consumers that have purchased new vehicles. Remedies include the right to recover “damages and other legal and equitable relief.” (Civ. Code, § 1794, subd. (a).) “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of